

Court No. - 86

Case :- APPLICATION U/S 482 No. - 32285 of 2022

Applicant :- Mohammad Rashid

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Mirza Ali Zulfaqar

Counsel for Opposite Party :- G.A.,Pranjal Mehrotra

Hon'ble Karunesh Singh Pawar,J.

Heard learned counsel for the petitioners and learned A.G.A. for the State as well as Shri Ram Chandra, learned Advocate holding brief of Shri Pranjal Mehrotra, learned counsel for respondent no. 2.

Through this petition, the petitioner has prayed for the following relief:-

"It is, therefore, most respectfully prayed that this Hon'ble Court may graciously be pleased to quash the entire proceeding of Complaint Case no. 749 of 2019, (State versus Mohammad Rashid) as well as order dated 08.09.2022, under section 135 Electricity Act, Police Station Ganj, District Rampur pending in the court of Learned Special Judge (E.C. Act), Rampur."

Learned counsel for the petitioners submits that the incident is of 25.01.2019 and the complaint has been lodged on 12.04.2019. He also submits that as per clause 8.2 of the Electricity Supply Code, 2005 and after the Electricity (Amendment) Act, 2007, it is incumbent upon the licensee to lodge a complaint regarding the incident within 30 days from the date of disconnection. In this case, the date of disconnection is the date of incident i.e. 25.01.2019 and the complaint has been filed beyond 30 days in the month of April, hence, the complainant had no locus to file the complaint and likewise the impugned cognizance and summoning order also has been passed in gross defiance of the Electricity Act, 2003 read with clause 8.2 of Electricity Supply Code, 2005 which is mandatory in nature. Hence, the impugned complaint as well as summoning order dated 08.09.2022 are nothing but abuse of process of law.

Submissions advanced by learned counsel for the petitioners appears to have force. Hence, till the next date of listing, the impugned proceedings as well as summoning order dated 08.09.2022 are stayed.

Learned A.G.A. as well as learned counsel for respondent no. 2 prays for and is granted four weeks time to file counter affidavit.

Rejoinder affidavit, if any, may be filed within two weeks thereafter.

List on 24.01.2023.

Order Date :- 5.12.2022

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